
2:00 PM **LINE 6**

25-CIV-03556

DOMINIC HIGBEE-GONSALVES VS. ISHAR INVESTMENTS, INC., ET AL

DOMINIC HIGBEE-GONSALVES
ISHAR INVESTMENTS, INC.

CHRISTINA BEGAKIS
KANDICE CANCHAN

MOTION TO COMPEL INITIAL RESPONSES TO SPECIAL INTERROGATORIES (SET ONE); REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$2,760.00

TENTATIVE RULING:

Plaintiff's motion to compel defendant Ishar Investments, Inc. to provide initial responses to his Special Interrogatories, Set One, is moot. The declaration of Junlin Liu indicates that plaintiff received responses from defendant on September 11, 2025. While plaintiff argues that the responses are unverified and, therefore, the equivalent of no response at all, this is incorrect. Code of Civil Procedure, section 2030.250 provides that the party to whom the interrogatories are directed shall sign the response under oath unless the response contains only objections. It further provides that the attorney for the responding party shall sign any responses that contain an objection. The Liu declaration states that the responses received on September 11, 2025, contained only objections. The copy of the responses attached to the Liu declaration is signed by counsel for defendant. If plaintiff contends that the objections lack merit, the proper method to address that issue is a motion to compel further response pursuant to Code of Civil Procedure, section 2030.300. Defendant's contention that such a motion is barred by the 45-day time limit in Code of Civil Procedure, section 2031.310, subdivision (c) is not currently before the court.

Notwithstanding this ruling, defendant's counsel is admonished to provide substantive responses to plaintiff's discovery requests to avoid costly, time-consuming and unnecessary discovery motions.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 7**

25-CIV-05414

PONY TRACKS RANCH, LLC VS. COUNTY OF SAN MATEO

PONY TRACKS RANCH, LLC
COUNTY OF SAN MATEO

GREGORY S. WALSTON
TIMOTHY J. FOX

MOTION FOR JUDGMENT UNDER SECTIONS 1085 AND 1094.5 OF THE CODE OF CIVIL PROCEDURE

TENTATIVE RULING:

Initially, the court notes that petitioner has not provided the correct address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, California 94401. (See Cal. Rules of Court, Rule 3.1110 [the Notice “must specify” the location of the hearing].)

Petitioner is reminded that exhibits must be properly bookmarked. That is, “electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 [“Failure to bookmark exhibits to electronically filed documents may result in rejection of the party’s e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion.”].)

The Motion for Judgment on Petition for Writ of Mandate (Code Civ. Proc., § 1085, or alternatively, § 1094.5) brought by petitioner Pony Tracks Ranch, LLC is **DENIED**.

A. Background

Petitioner alleges that it owns seven parcels of realty in San Mateo County and filed applications with respondent for certificates of compliance as to each parcel. However, petitioner contends that instead of issuing the certificates (Gov. Code, § 66499.35, subd. (a)), or conditional certificates (*id.*, § 66499.35, subd. (b)), respondent wrongly found that the seven parcels had been merged into a single parcel. (Civ. Code, § 1093.) Petitioner seeks a writ mandating that respondent’s decision denying the requested certificates be set aside, and that respondent grant as to each of the seven parcels, either an unconditional or a conditional certificate, and that it comply with Civil Code, section 1093.

Petitioner moves for judgment on the Petition for Writ of Mandate, and for an Order finding that respondent violated the law by (1) failing to issue a certificate of compliance as to each of petitioner’s parcels (Gov. Code, § 66499.35) and (2) finding that petitioner’s parcels had been merged (Civ. Code, § 1093); and therefore setting aside respondent’s refusal to issue certificates and instructing respondent to issue unconditional certificates of compliance for each of the seven parcels.
